

identify additional facts that Plaintiff proposes to allege in a second amended complaint beyond "further facts demonstrating substantial compliance, actual receipt, and the District's waiver of any defect in the claim's presentation." (See Opp. p. 3:14-16.) These are the legal conclusions Plaintiff hopes to establish, but Plaintiff does not say what the facts would be. Plaintiff has therefore not carried his burden of showing a reasonable possibility that the defect can be cured.

Because Plaintiff has already had one opportunity to amend, the Court infers that he has pleaded this theory to best advantage and finds that further leave to amend would be futile.

Disposition

For the foregoing reasons, the demurrer is **sustained without leave to amend**.

If Plaintiff contests this tentative ruling and requests further leave to amend, he should be prepared to identify at the hearing the specific facts he would allege to state a viable cause of action against the District as a public entity.

8. 9:00 AM CASE NUMBER: C25-00983
CASE NAME: DARCELL KELLY VS. EDDIE DRUMMER
*HEARING ON MOTION IN RE: INTERLOCUTORY JUDGMENT OF PARTITION BY SALE
FILED BY: KELLY, DARCELL
TENTATIVE RULING:

The court on its own motion **continues** the hearing on this matter to **August 7, 2026**, at 9:00 a.m., in Department 32. Plaintiff Darcell Kelly AKA Darcell Purefoy shall file the separate statement in support of the motion for summary judgment regarding an interlocutory judgment of partition by sale, by July 29, 2026.

9. 9:00 AM CASE NUMBER: C25-03386
CASE NAME: CECILY TAYLOR VS. STEVE SMITH
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT AS TO STEVE SMITH
FILED BY: SMITH, STEVE
TENTATIVE RULING:

The unopposed motion of Defendant Steve Smith to set aside default pursuant to CCP Section 473(b) is **granted**. Defendant must file and serve his Answer or other responsive pleading within 15 days of this ruling, i.e., within 15 days of July 17, 2027.